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California Senate passes Assembly bill to ban certain food ingredients for safety concerns

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The California Food Safety Act, which passed the State Assembly on May 15 with a 54-to-12 vote, was also approved Monday by the State Senate with a 33 to 3 vote. The California Assembly today, or anytime after, can vote to concur with the Senate version, which differs from the original Assembly bill in one crucial aspect.

If the Assembly does concur, AB418 will be on the Governor's desk, and many food manufacturers will change their recipes to eliminate ingredients banned by the new law in California, which in many cases will likely cease being used nationally.

Because of the potential national impact, the California Food Safety Act will likely be the most important bill passed this year by any state legislative body. AB418 was introduced in February by Assembly member Jesse Gabriel, D-San Fernando Valley. It seeks to ban harmful food additives already prohibited from use in the European Union.

As passed by the Assembly, AB418 bans Brominated vegetable oil, Potassium bromate, Propylparaben, titanium dioxide, and Red dye No. 3 from food. The apparent difference between the Assembly and Senate versions is the upper house took titanium dioxide off the banned list.

Titanium dioxide is often added to foods to enhance white coloring or opacity.

To be added to food, titanium dioxide as an additive must achieve 99 percent purity. That still leaves room for small amounts of potential contaminants like lead, arsenic, or mercury.

Chewing gum, candy, pastries, chocolates, coffee creamers, and cake decorations are among food items that may contain titanium.

The U.S. Food and Drug Administration still considers titanium dioxide safe, and apparently, so does the California Senate, which removed it from the AB481's list of banned substances.

That leaves four ingredients on the banned list including Brominated vegetable oil, Potassium bromate, Propylparaben, and Red dye No. 3.

The first-time fine for anyone found violating the new law is $5,000, with each subsequent violation going to $10,000. California's Attorney General and city and country attorneys are all empowered to bring charges under the statute.

By closing its marketplace to foods containing these substances, California will likely cause many manufacturers to change recipes for foods distributed nationwide. This is not unlike the national change California is bringing about by closing its market to poultry and pork producers who do not meet its animal housing standards.

After Jan.1, 2027, under the bill, it will be illegal in California to manufacture, sell, deliver, distribute, hold, or offer for sale any food product for human consumption that contains any of the four products.

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